



TEXAS SOUTHERN UNIVERSITY
THURGOOD MARSHALL SCHOOL *of* LAW

CONTRACT LAW [I]

FALL 2026

3 CREDITS

LAW 504/ SECTION 4

MWF 11:00 AM - 11:50 AM, RM 206

PROF. JIDE JAMES-ELUYODE

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THE PROFESSOR

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LOCATION: 221J

OFFICE HOURS: In person: *Open: MW*, 10.00 am - 10.30 am; 2.00pm – 3.15pm; *Fri*, 10.00 am - 10.30 am; 12pm – 1pm*

NOTE FROM THE PROFESSOR:

Virtual & all other meeting times are also available but strictly by appointment only.

**Prior appointment is required for Fridays.*

COURSE BOOKS & MATERIAL

Required Textbooks



Knapp, Crystal, Prince, Hart, & Silverstein, *Problems in Contract Law: Cases and Materials* (10th ed. 2023)



Knapp, Crystal, Prince, and Rowley *Rules of Contract Law* (Aspen 2019) *OR later edition

Other supplementary materials will be provided on as-needed basis

COURSE DESCRIPTION & OBJECTIVE

DESCRIPTION:

We frequently encounter contract law in our daily activities without paying much attention. More so, issues concerning the validity or enforceability of contractual obligations remain an integral part of our day-to-day human social and business interactions. This course therefore introduces students to the law of contracts and its various implications and ramifications. This course focuses significant attention on issues concerning formation and interpretation of contracts, breach of contracts, the justification for and consequences of nonperformance of contractual obligations, defenses to the enforcement of contracts, and remedies that are available for breach of contracts. To ensure a well-rounded understanding of the contours of contract law and its applications, students will be exposed to different perspectives concerning the sources of contract law, including those relating to case law, Article 2 of the Uniform Commercial Code (“UCC”), and the United Nations Convention on Contracts for the International Sale of Goods (“CISG”). The primary objective of this course is to help students gain a deeper and functional knowledge about the various topics discussed and issues examined throughout the semester. To this extent, this course will also incorporate practical learning activities such as exercises on how to apply contract law to fact patterns, thorough examination of decided cases, analysis of in-class hypotheticals and assigned problems, as well as review of sample exam questions.

OBJECTIVE: *Fall Semester Coverage Areas*

1. Introduction to Contract Law; and Governing Law.
2. The Basis of Contractual Obligation: Mutual Assent and Consideration.
3. Liability in the Absence of Bargained-for Exchange: Reliance on Gratuitous Promises, Unaccepted Offers, and the Principle of Restitution (Unjust Enrichment).
4. The Statute of Frauds.
5. The Meaning of the Agreement: Principles of Interpretation and the Parol Evidence Rule.
6. Supplementing the Agreement: Implied Obligation of Good Faith, and Warranties.

STUDENT LEARNING OUTCOMES

After completing this course, students should be able to:

- Identify the various rules governing contracts such as case law, statutes (domestic and international), restatements, and customs, as well as develop the skill needed to locate and apply these rules.
- Describe the fundamental structure and basic elements of contracts and understand how to form binding contracts and resolve issues concerning manifestation of mutual assents such as identifying valid offer, acceptance, consideration, capacity, and legality.
- Evaluate factors that could limit the enforcement of contracts and those issues capable of excusing contractual performance.
- Analyze available remedies for breach of contract and assess the viability of potential defenses to contract enforcement.
- Compare and apply the common law, UCC, and CISG approaches to contract formation and contract defenses.

GRADING

Allocation of letter grades (final grades) will be based on the total number of points earned by each student throughout the semester plus the result of the comprehensive final exam,

[A] Quiz 1 (multiple choice: 50 points)

Quiz 2 (multiple choice: 50 points)

Midterm Exam (Essay: 100 points)

.

[B] Attendance, class participation, and learning activities (100 points)

[C] Professor's end of semester exam (200 points) *

[D] Comprehensive final exam. *(This is a multiple-choice final exam administered by the law school, and will count for **50% of total semester grade**)*

Note that A, B, and C above (totaling 500 points) will constitute 50% of your final grade for this course, while the comprehensive final exam (COMP EXAM) will supply the remaining 50%. **Note also that the Law School (not the professor) will supply the final letter grade for this course*

ACCOMMODATIONS

Other than cases of exigency, students *must* first seek and obtain proper accommodation **prior to missing any class sessions**, failing to timely submit class assignments or engaging in all other types of learning activities set for this course.

Late submission of assignments will NOT be accepted, unless the professor is notified *BEFORE* the assignment is due and provides an opportunity for the student to submit their assignment late.

Please Refer to the Student Accommodations Handbook for Specific Procedures.

RULES FOR PARTICIPATION, ATTENDANCE & PROFESSIONALISM

*Attendance will be taken on a regular basis and will be considered in computing the final grades for this course. *Students should be aware that appropriate points will be deducted for each unaccommodated absence.*

***No students will be permitted to enter the classroom 8 minutes after classroom discussion has commenced. Please note that this rule will be strictly enforced.** Note also that any late attendance pursuant to this requirement will have the same effect as missed attendance.

*In any event, a student **cannot** miss class sessions without proper accommodation. *Missing classes without proper accommodation will be subject to penalty including point deduction.*

*Note that a student who **misses** 3 or more class sessions *without first obtaining proper accommodation* may be disqualified from writing the final exams for this course (in addition to appropriate points deduction).

***Note that each student is responsible for monitoring how many classes they have missed.**

*This course requires consistent students' engagement, participation, and input in order to provide an organic teaching and learning experience for everyone. Students must therefore be prepared for class each week. Preparation for class means timely completion of assigned class work, reading the assigned materials and cases, and reviewing all information required for each week.

****Students must be respectful of both the right of their classmates to learn and to engage productively in the academic activities prescribed for the class, as well as the instructor's right to teach and conduct the class. Class disruption of any kind is therefore discouraged and WILL NOT be tolerated.***

*Assignments, if or when scheduled, must be submitted by the prescribed deadline for it to count for credit. Late assignments will NOT be accepted, unless the professor is notified BEFORE the assignment is due and provides an opportunity for the student to submit their assignment late.

**Students are encouraged to contact the professor with any of their questions or concerns regarding this course.*

ACADEMIC CALENDAR

FALL SEMESTER 2026

Orientation:	Mon-Fri	<i>August 10-14, 2026</i>
First Day of Class:	Mon	<i>August 17, 2026</i>
Last Day to ADD/DROP:	Wed	<i>August 19, 2026*</i>
Labor Day (NO CLASSES):	Mon	<i>September 7, 2026</i>
Census I Date:	Wed	<i>September 1, 2026</i>
Non-Attendance (NAT) Reporting:	Wed	<i>September 1, 2026</i>
Purge for non-full payment:	Tue	<i>September 9, 2026</i>
Mid Term Examinations:	Mon–Fri	<i>October 5-9, 2026</i>
Last Day to Drop a Class/Withdraw:	Fri	<i>November 6, 2026**</i>
Last Day of Classes:	Tues	<i>November 24, 2026</i>
First Year Professors' Grades due:	Tues	<i>November 25, 2026</i>
Thanksgiving Holiday:	Wed-Fri	<i>November 25-27, 2026</i>
Reading Period:	Wed-Sun	<i>November 25-29, 2026</i>
Final Examinations:	Mon – Fri	<i>Nov. 30 - Dec 10, 2026</i>
University Commencement Ceremony:	Fri	<i>December 11, 2026</i>

Please be aware that the calendar events and /or dates are subject to change.

**Please note that to ensure timely processing, all add/drop paperwork must be received by the Law School Registrar no later than 5:00 p.m. 2.*

***Please note that to ensure timely processing, all paperwork must be received by the Law School and Registrars by 5:00 p.m.*

POLICIES & PROCEDURES

TSU Thurgood Marshall School of Law (TMSL) expects and requires all its students to act with honesty and integrity and respect the rights of others in carrying out all their academic assignments. All work submitted by students for this course must be their own. All sources used in any work must be properly acknowledged and indicated. Cheating, or any violations of academic honesty are taken seriously and may result in a failing grade.

It is the responsibility of each student to know the rules and regulations of TMSL. Students may access the Rules and Regulations Handbook through the TMSL's website, www.tsulaw.edu, and clicking on the "Students" tab, then "Student Affairs," "Student Rules and Regulations," and finally "Student Rules and Regulations 2021-2022."

Important Course Abbreviations

- KCP = **Knapp, Crystal & Prince**, Hart, & Silverstein, *Problems in Contract Law: Cases and Materials* (10th ed. 2023)
- RULES = Crystal, Prince and Rowley *Rules of Contract Law* (2017-2018, or 2019 editions are acceptable)
- R2d = Restatement (Second) of Contracts, reprinted in Knapp, Crystal, Prince and Rowley *Rules of Contract Law* (2017-2018, or 2019 editions are acceptable)
- UCC = Uniform Commercial Code, reprinted in Knapp, Crystal, Prince, and Rowley, *Rules of Contract Law*
- CISG = Convention on Contracts for the International Sale of Goods, reprinted in Knapp, Crystal, Prince, and Rowley *Rules of Contract Law*

Mandatory SASO and Title IX Syllabus Statements

Student Accessibility Services Office (SASO) Syllabus Statement

Classroom Accommodations for Students with Disabilities

In accordance with the Americans with Disabilities Act (ADA), Texas Southern University (TSU) is committed to providing equitable access to learning opportunities to students with documented disabilities (e.g., mental health, attentional, learning, chronic health, sensory, or physical). For each class/term/semester where a student needs academic adjustments/ accommodations, the qualified student must work with SASO. Contact with the SASO should be made as soon as possible to ensure academic needs are met in a reasonable time. **Only the SASO can grant, modify, or withdraw academic adjustments/accommodations.**

If you have not yet established services through SASO but have a temporary health condition or permanent disability that requires accommodations, you are welcome to contact SASO by using the information listed on the following webpage: <https://www.tsu.edu/students-services/departments/disability-services/register-with-the-ods>. The SASO office offers resources and coordinates reasonable accommodations for students with disabilities and/or temporary health conditions qualifying for accommodations/academic adjustments. Reasonable accommodations are established through an interactive process between you, your faculty, and SASO. Only those academic adjustments/reasonable accommodations granted by the SASO are recognized by TSU. TSU's policy and practice is to create an inclusive and accessible learning environment consistent with federal and state law.

Title IX/Pregnant and Parenting Students Syllabus Statement

Addressing Incidents of Title IX Sexual Harassment

In accordance with Title IX of the Education Amendments of 1972, Texas Southern University (TSU) prohibits unlawful sexual harassment against any participant in its education programs or activities. Title IX requires schools to take steps to prevent and remedy sexual harassment, hostile environment, including sexual violence, gender-based harassment, dating/domestic violence, and stalking. This prohibition against sexual harassment - including sexual violence - applies to TSU students, employees, and visitors to campus.

TSU's policy is to provide an educational, employment, and business environment free of sexual violence, unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct or communications constituting sexual harassment as prohibited by state and federal law. Incidents of

Sexual Misconduct should be reported to the college Title IX Coordinator, as outlined in policy. Reports of alleged Title IX violations may be made by visiting: <https://app.smartsheet.com/b/form/4e1d5ba471ee442082f477910cb1b4c4>. Reports may also be made directly through email to TitleIX@TSU.edu.

Pregnant and parenting students should expect to obtain reasonable academic adjustments/ accommodations based on their pregnant and parenting status to maintain access to the educational environment. These students should work with the Title IX Coordinator for appropriate academic adjustments/accommodations. TSU cannot grant retroactive adjustments, so reaching out early with requests is important. Discrimination against pregnant and parenting students is also prohibited under Title IX. For more pregnant and parenting information, please visit the Title IX webpage found at: <https://www.tsu.edu/about/administration/office-of-compliance/title-ix/>



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READING ASSIGNMENTS: FALL 2026

WEEK 1: August 17-21

Aug. 17: *Housekeeping matters, course expectations, meaning of the term “contract” and its implications.*

Read: KCP, pp. 1- 8 (top), RULES, R2d § 1 & 3, UCC, 1-103, 2-102, 2-105(1).

*You should brief the case of *R.R v. M.H & Another*.

Aug. 19: **Introduction to contract law, sources of contract law, and the perspectives of contract theory.*

Read: KCP, pp. 8-22, RULES – R2d Editor’s Note, pp. 1-3 (top), R2d § 17, CISG, Editor’s Note pp. 355-357; Articles 1, 2, 10.

Aug. 21: *Mutual Assent, Manifestation of Mutual Assent as the fundamental basis of contract, The Theory of Contract (Objective Theory vs. Subjective Theory) – Note Lucy V. Zehmer (1954)*

Read: KCP, pp. 23-33 (top); RULES - R2d § 18-23; Take note of *Ray v William G Eurice & Bros.*; and brief *Meyer v Uber Technology* (868 F.3d 66, 2017).

WEEK 2: August 24-28

Aug 24: *Offer & Acceptance: Understanding the Overarching Rules of Offer (offer v. invitation to treat, revocation, rejection, counteroffer)*

Read: RULES, R2d §§17, 22, 24, 25, 40, 50(1), 60, 63(a), 36 (1), 38, 39, 43, 59. Brief the following cases: *Ray v. William G. Eurice & Bros., Inc.*, 201 Md. 115, 93 A.2d 272 (1952); *Leonard v. PepsiCo, Inc.* 210 F.3d 88 (2d CIR. 2000); *Carlill v. Carbolic Smoke Ball Co., Court of Appeal [1893] 1 Q.B. 256*; *Loneragan v. Scolnick*; *Nebraska Seed Co. v. Harsh* - 98 Neb. 89, 152 N.W. 310 (1915).

Aug. 26: *Termination of an Offer*

Read: KCP, pp. 34-49, problems 2-1; RULES, R2d §§17, 22, 24, 25, 40, 50(1), 60, 63(a), 36 (1), 38, 39, 43, 59. Note *Dickinson v. Dodds*, 2 Ch D 463; *Normile v. Miller*, and problem 2-1.

Aug. 28: *Offer and Acceptance in the Context of Bilateral & Unilateral Contracts (bilateral contracts vs. unilateral contracts comparison) – Pt.1*

Read: KCP, pp. 49-67 (top), Problem 2-2; RULES, R2d §§ 22, 24-25, 45, 50. Note *Cook v. Coldwell Banker/Frank Laiben Realty Co.*, *Sateriale v. R.J. Reynolds Tobacco Co.*



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WEEK 3: August 31 - September 4

Aug. 31: Offer and Acceptance in the Context of Bilateral & Unilateral Contracts (*bilateral contracts vs. unilateral contracts comparison*) – **Pt.2**

Read: KCP, pp. 49-67 (top), Problem 2-2; RULES, R2d §§ 22, 24-25, 45, 50. Note *Cook v. Coldwell Banker/Frank Laiben Realty Co.*, *Sateriale v. R.J. Reynolds Tobacco Co.*

Sept 2: Understanding the Overarching Rules of Acceptance: *Elements of acceptance* (the mirror image rule, the mailbox rule - I, acceptance through conduct, etc.), *Conditional Acceptance* (mere inquiries v. counteroffers)

Read: RULES - UCC 2-204 & 2-206, R2d § 22, R2d § 50 (1), R2d § 63, R2d § 69. Revise KCP, pp. 34-49. *Brief the following cases *Austin v. Burge*, 156 Mo. App. 286 (1911), *Brogden v. Metropolitan Railway Company*, (1877) 2 App Cas 666. (House of Lords), *Laredo Nat'l Bank v. Gordon* - 61 F.2d 906 (5th Cir. 1932), and *Adams v. Lindsell* (1818) 1 B & Ald 681.

Sept 4: Mailbox rule - II (*Adams v. Lindsell* review) AND Postponed Bargaining: *The Agreement to Agree*

Read: KCP, pp. 66-87. Note *Walker v. Keith*, *Quake Construction v. American Airline*, and Problem 2-3

WEEK 4: September 7 - 11

Sept. 7: **NO CLASS (Labor Day)**

Sept. 9: Consideration (I) – Meaning, Nature, & Scope (adequacy & sufficiency)

Read: KCP, pp. 87-102. Note *Hamer v Sidway*, *Pennsy Supply v. America Ash Recycling Corp.*, and R2d §§ 71, 79.

Sept. 11: Consideration (II) – *Non-Consideration: Past Consideration & Moral Agreements*.

Read: KCP, pp. 102-116 (top). Note *Dougherty v. Salt AND Plowman v. Indian Refining Co.*

WEEK 5: September 14 – 18

Sept. 14: Consideration (III) - *Sufficiency & Adequacy of Consideration*.

Read: KCP, pp. 116-133 (top). Brief *Schnell v. Nell* - 17 Ind. 29 (1861). Note *Harris v. Time Inc.*; *Batakis v. Demotsis*; *Marshall Durbin Food Corp v. Baker*; and problem 2-6.



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Sept. 16: Contract Formation – *The Concept of Mutual Assent & The UCC*

Read: KCP, pp. 133-147. Note *Jannusch v. Naffziger*, and *E.C Styberg Engineering Co. v Eaton Corp.*
RULES - UCC §§ 2-204, 2-206, 2-305, 1-103 (b), R2d §§ 22, 33, 50, CISG Arts. (1)(a), (2), (6), 10, 14, 18, 23, 24.

Sept. 18: Contract Formation – *Qualified Acceptance & Battle of the Forms*

Read: KCP, pp. 147 (bottom) -168. Note *Princess Cruises Inc. v. General Electric Co.* and *Brown Machine, Inc. v. Hercules*. RULES - R2d § 59; UCC § 2-207.

WEEK 6: September 21-25

Sept. 21: Contract Formation – *Qualified Acceptance & Battle of the Forms*

Read: KCP, pp. 168-181. Note *Paul Gottlieb & Co. v. Alps South Corp.*, Problems 2-7 & 2-8, and
RULES - R2d § 59; UCC § 2-207

Sept. 23: Electronic and “Layered” Contracting

[1] Read: KCP, pp. 181-196. Note *DeFontes v. Dell Inc.* and browse *Hill v. Gateway 2000 Inc & Klocek v. Gateway Inc.* as well.

[2] Read: KCP, pp. 196-212. Note *Long v. Provide Commerce, Inc.*, *Nguyen v Barnes & Nobles*, Problem 2-9, and review questions for chapter 2.

Sept 25: ***QUIZ 1**

WEEK 7: September 28- October 2

Sept 28: Liability in the Absence of a Bargained-For Exchange - *The Doctrine of Promissory Estoppel & Protection of promisee reliance*

Read: KCP, pp. 212-224. Note *Kirksey v. Kirksey*, *Harvey v. Dow*, and RULE - R2d § 90(1)

Sep. 30: Liability in the Absence of a Bargained-For Exchange – *Promissory Estoppel & Charitable Subscriptions.*

Read: KCP, pp. 224-235. Note *King v. Trustees of Boston University*, *Md. Nat’l Bank v. United Jewish Appeal Fed’n*, RULE - R2d § 90(2), and problems 3-1.

Oct. 2: Liability in the Absence of a Bargained-For Exchange - *Promissory Estoppel in a Commercial Context.*

Read: pp. 235-253. Note *Katz v Danny Dare, Inc.*, *Romano v Site Acquisitions LLC*, and *Aceves v U.S Bank, N.A.*



Law of Contracts Midterm exam: Monday Oct. 5, 2026, 9:00 AM - 11:00 AM, Rm 208



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WEEK 11: October 26-30

Oct. 26: Statue of Frauds & the Sale of Goods (UCC 2-201)

Read: KCP, pp. 372-386. Note *Buffaloe v. Hart*, *Sedmark v. Charlie's Chevrolet Inc.* (Mo ct App. 1981), RULE - UCC 2-105 (1), 2-201, 2-201 (3), 1-201, 1-201(b)(37) & (43), Problem 4-4.

Oct 28: The Express Terms of an Agreement - *Principles of Interpretation*.

Read: KCP, pp. 387-418 (top). Note *Prochazka v. Bee Development, LLC*, *Frigalimient Importing Co. v. B.N.S. Intl Sales Corp.* (the chicken v chicken case). RULE - R2d 201-204, 206-207, 222-223, UCC 1-303

Oct. 30: The Express Terms of an Agreement - *Reasonable Expectations Doctrine*

Read: KCP, pp. 418-429. Note *C & J Fertilizer Inc. v. Allied Mutual Insurance Co.*, Problem 5-1

WEEK 12: November 2-6 *(note that the class session for Nov 4 may be conducted remotely)

Nov. 2: The Express Terms of an Agreement & the Parol Evidence Rule (*the Common Law*)

Read: KCP, pp. 429-440. Note *Thompson v. Libby*, RULE - R2d 209-211, 213-217.

Nov. 4: *The Express Terms of an Agreement & the Parol Evidence Rule (*the UCC*)

Read: KCP, pp. 440-454. Note *Taylor v. State Farm Automobile Ins.*, RULE – UCC § 1-303 (d) & (e).

Nov. 6 *QUIZ 2

WEEK 13: November 9 - 13

Nov. 9: The Express Terms of an Agreement & the Parol Evidence Rule (*fraud/mistake/trade usage*)

KCP, pp. 454-481. Note *Sherrodd, Inc. v. Morrison-Knudsen Co*, *Nanakuli Paving & Rock Co. v. Shell Oil Co.*, RULE - UCC 2-202, 1-303. Also, brief *Hurst v. W.J. Lake and Co.*, 141 Or. 306, 16 P.2d 627 (1932).

Nov. 11: Supplementing the Agreement: *Implied Terms*

Read: KCP, pp. 485-496. Note *Wood v. Lucy - Lady Duff-Gordon*, *Leibel v. Raynor Manufacturing Co.*, RULE - UCC §§ 2-306(2), 2-308, 2-309



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Nov. 13: Supplementing the Agreement: *Implied Obligation of Good Faith*

Read: KCP, pp. 496-512. Note *Seidenberg v. Summit Bank*, RULE - R2d § 205, UCC §§ 1-102(3), 1-304, 1-2019(b)(20), 2-103(1)(b), 2-306(1)

WEEK 14: November 16 - 20

Nov. 16: Supplementing the Agreement: *Implied Obligation of Good Faith*

Read: KCP, pp. 512-529. Note *Morin Building Products Co. v. Baystone Construction Inc.*, *Locke v. Warner Bros. Inc.*,

Nov. 18: Supplementing the Agreement: *Implied Obligation of Good Faith*

Read: KCP, pp. 529-550. Note *Geysen v. Securitas Security Services*, Problem 6-2.

Nov. 20: Supplementing the Agreement: *Warranties*

*Read: KCP, pp. 550-562. Note *Bayliner Marine Corp. v. Crow*, RULE - UCC §§ 2-313, 2-314, 2-315, 2-316, and Problem 6-4.

*Read also: KCP, pp. 562-571. Note *Speight v. Walters Development Co.*, revise RULE - UCC §§ 2-313, 2-314, 2-315, 2-316.

WEEK 15: November 23 - 27

Nov. 23: Professors' Final Exam: Mon. Nov, 24, 2025, @ 11 a.m., Rm 206 *(tentative/expect more info)

Nov 25-27: Thanksgiving Holiday

Nov 25-29: Reading Period

FINAL COMP EXAM: Nov. 30 – Dec. 10, 2026 (specific date & time for contract law will be provided soonest)

**It is the responsibility of each student to ascertain any changes (made by the law school) relating to the COMP exam's date, time, and room.*

Take note that the content of this syllabus may be modified or revised as needed during the course of the semester. However, students would be notified of such modification or revision if or when they occur.